

(Unofficial)

Notification of the Ministry of Public Health

(No. 449) B.E. 2567 (2024)

Issued by virtue of the Food Act B.E. 2522

Re: Food Containing Pesticide Residues (*Pesticide Residues in Food*) (No.4)

It deems appropriate to amend the Notification of the Ministry of Public Health,
Re: Food Containing Pesticide Residues (*Pesticide Residues in Food*).

By the virtue of the provisions in the first paragraph of Section 5 and Section 6 (2) (3) (8) and (9) of the Food Act B.E. 2522 (1979), the Minister of Public Health hereby issues the Notification as follows:

Clause 1 Clause 4 of the Notification of the Ministry of Public Health (No. 387) B.E. 2560 (2017) Re: Food Containing Pesticide Residues (*Pesticide Residues in Food*), dated 18th August 2017 as amended by the Notification of the Ministry of Public Health (No. 419) B.E. 2563 (2020) issued by virtue of the Food Act B.E. 2522 Re: Food Containing Pesticide Residues (*Pesticide Residues in Food*) (No. 3) dated 25th September 2020 is repealed and replaced with the following:

“Clause 4 Food Containing Pesticide Residues shall be complied with the prescribed standards and shall not contain any pesticides defined as Hazardous Substances Type 4 under the Hazardous Substance Act B.E. 2535 (1992) prescribed in Annex 1 of this Notification, except those other pesticides specified as follows:

(1) Pesticide residues in food shall not exceed the Maximum Residue Limit (MRL) prescribed in Annex 2 of this Notification,

(2) Pesticide residues in food, that does not specified in Annex 2 of this Notification, shall not exceed the MRL recommended by Codex Alimentarius Commission, Joint FAO/WHO Food Standards Programme,

(3) Where no MRL specified in (1) and (2), pesticide residues in plant or animal commodities shall not exceed the default limit of 0.01 milligrams of pesticide residue per kilogram of the food, unless default limits of certain pesticides for plant commodities that were specified in Annex 3 of this Notification”,

(4) Pesticide residues in food shall not contain any Extraneous Maximum Residue Limit (EMRL), except the EMRL prescribed in Annex 4 of this Notification. In case where there is no EMRL specified in Annex 4 of this Notification, the pesticide residues shall not exceed the EMRL recommended by Codex Alimentarius Commission, Joint FAO/WHO Food Standards Programme,

(5) Pesticide residues in processed food shall not exceed the limits prescribed in (1) (2) or (4). In case where no specific limits are set out, the pesticide residues in processed foods shall not exceed the limits specified in such agricultural commodity according to (1), (2), (3) or (4), except for the processed food which increase the concentration of pesticide residue caused by processing. For the later, food producer or importer shall provide the evidence to prove that processed food derived from raw commodity with the concentration of pesticide residue comply with (1), (2), (3) or (4).”

Clause 2 Clause 4/1 is added to the Notification of the Ministry of Public Health No.387 B.E. 2560 (2017) Re: Food Containing Pesticide Residues (*Pesticide Residues in Food*), dated 18th August 2017 as following:

“**Clause 4/1** Food containing pesticide defined as Hazardous Substances Type 4 prescribed in Annex 4 of this Notification are prohibited to be produced, imported or sold”

Clause 3 The maximum residue limit for the pesticide No.3 Carbaryl for Mangosteen from Annex 2 of the Notification of the Ministry of Public Health No. 387 B.E.2560 (2017) Re: Food Containing Pesticide Residues (*Pesticide Residues in Food*), dated 18th August 2017 is repealed and replaced with the following:

No.	Pesticides	Residue Definition	Commodities	Maximum Residue Limit (mg/kg)
3	Carbaryl	carbaryl	Mangosteen	20

Clause 4 The maximum residue limits for the pesticides No.21 Thiamethoxam, are added to Annex 2 of the Notification of the Ministry of Public Health No. 387 B.E.2560 (2017) Re: Food Containing Pesticide Residues (*Pesticide Residues in Food*), dated 18th August 2017, No.47 Imidacloprid and No.53 Dinotefuran are added to Annex 2 of the Notification of the Ministry of Public Health No. 387 B.E.2560 (2017) Re: Food Containing Pesticide Residues (*Pesticide Residues in Food*), dated 18th August 2017 as amended by the Notification of the Ministry of Public Health (No. 393) B.E 2561 (2018) issued by virtue of the Food Act B.E. 2522 Re: Food Containing Pesticide Residues (*Pesticide Residues in Food*) (No. 2) dated 24th September 2018, as follows:

No.	Pesticides	Residue Definition	Commodities	Maximum Residue Limit (mg/kg)
21	Thiamethoxam	thiamethoxam	Pineapple	0.01
		clothianidin	Pineapple	0.01
47	Imidacloprid	sum of imidacloprid and its metabolites containing the 6-chloropyridinyl moiety, expressed as imidacloprid	Pineapple	0.15
53	Dinotefuran	<u>Plant:</u> dinotefuran <u>Animal:</u> sum of dinotefuran, 1-methyl-3-(tetrahydro-3-furylmethyl) urea (UF) expressed as dinotefuran	Pineapple	0.15

Clause 5 The following maximum residue limits for pesticides; No. 54 Fluopyram and No.55 Trifloxystrobin are added to Annex 2 of the Notification of the Ministry of Public Health No.387 B.E. 2560 (2017) Re: Food Containing Pesticide Residues (*Pesticide Residues in Food*), dated 18th August 2017:

No.	Pesticides	Residue Definition	Commodities	Maximum Residue Limit (mg/kg)
54	Fluopyram	fluopyram	Mango	1
			Longan	2
55	Trifloxystrobin	trifloxystrobin	Mango	0.9
			Longan	1.5

Clause 6 “Residue Definition” as the heading of the table in Annex 5 of the Notification of the Ministry of Public Health (No.419) B.E.2563 (2020) issued by virtue of the Food Act B.E.2522 Re: Food Containing Pesticide Residues (*Pesticide Residues in Food*) (No.3) dated 25th September 2020 is repealed and replaced with

“Pesticides”

Clause 7 This Notification shall enter into force on the day following the date of its publication in the Government Gazette onwards.

Notified on 20th May B.E. 2567 (2024)

(Signed) Somsak Thepsuthin

(Mr. Somsak Thepsuthin)

Minister of Public Health

Repeal

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